

Sahina Ali Ansari v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 18 July 2023 · 2023:AHC:142050-DB · WRIT - C No. - 23144 of 2023 · **Writ consigned; Supply Code assessment remedy left open.**

HEADNOTE

A provisional assessment of electricity dues is not to be challenged directly by writ. The consumer may object to the provisional assessment or challenge the final assessment in proceedings under the Uttar Pradesh Electricity Supply Code. Writ-C No. 23144 of 2023 was consigned to the records.

FACTUAL SUMMARY

On 31 January 2023 a provisional assessment of electricity dues was made against Sahina Ali Ansari. She filed Writ-C No. 23144 of 2023 before the Allahabad High Court to challenge that assessment directly. Counsel for the respondents submitted that the case was one of theft of electricity. Her counsel stated that she was willing to have the dues compounded and to pay them. The Division Bench heard the petition on 18 July 2023.

HOLDING-UNITS

HOLDING-UNIT · Uttar Pradesh Electricity Supply Code

direct writ against provisional assessment

HOLDING

It is open to the consumer to file an objection to a provisional assessment of electricity dues, or to challenge the final assessment, in the proceedings contemplated under the Uttar Pradesh Electricity Supply Code. A writ petition is not required to be entertained for those purposes directly. The petition was consigned to the records. ¶ 1

FLAG The order invokes the Uttar Pradesh Electricity Supply Code without numbering a clause; no clause number has been inferred.

PRINCIPLE TAGS

writ-not-entertained-supply-code-assessment The Division Bench refused to entertain a direct writ against the provisional assessment dated 31.01.2023 and left the petitioner to object to that assessment or to challenge the final assessment under the Uttar Pradesh Electricity Supply Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT DATED 31.01.2023 IS CORRECT, AND WHETHER THE CASE IS THEFT OF ELECTRICITY

Theft was a submission by counsel for the respondents. The Court did not examine the assessment. ¶ 1

NOT DECIDED — WHETHER THE DUES MAY BE COMPOUNDED, AND ON WHAT TERMS

The petitioner offered to compound and pay. The Court did not direct compounding. ¶ 1